

TENTATIVE RULING

Case: Evergreen Circle Investors, LP v. Gonzalez
Case No. CV2026-0920

Hearing Date: April 17, 2026 **Department Two** **1:30 p.m.**

Defendant Francisco Gonzalez’ request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (c), 453.) While the Court takes judicial notice of Exhibits B, C, and D, the Court finds that Exhibit A is irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant’s demurrer to plaintiff Evergreen Circle Investors, LP’s complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) While plaintiff attached the Violence Against Women Act (“VAWA”) notices to its notice to pay rent or quit (“three-day notice”), the VAWA notices expired prior to their service on defendant. (Complaint, ¶¶ 12-13 Exhibits 2 & 3 [indicating that the three-day notice was served on January 9, 2026, and the VAWA notices expired on June 30, 2017].) Therefore, plaintiff did not attach a “Notice of Occupancy Rights under the Violence Against Women Act,’ *as prescribed and in accordance with directions provided by HUD*” and a “certification form, *in a form approved by HUD*” to the notice served on defendant. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii), emphasis added; Complaint, ¶ 12, Exhibit 2.) As the notice did not include the required VAWA notices pursuant to statute, it “cannot support an action for unlawful detainer.” (*DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 9-10; 24 C.F.R. § 5.2005, subd. (a)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.